

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

SM LINE CORPORATION,

RESPONDENT.

JOINT STATUS REPORT

Pursuant to the October 16, 2024 Order Granting Complainant's Motion Requesting A Subpoena to SeaLead Shipping USA, Inc. ("Order"), Samsung Electronics America, Inc. ("SEA") and Respondent, SM Line Corporation ("SM Line") (each a "Party" and collectively the "Parties"), submit this Joint Status Report.

On October 27, 2024, Mr. Lee agreed to provide his home address if SEA withdraws the SeaLead and Lee Subpoenas. On November 12, 2024, the Parties agreed to the terms of Mr. Yoon-Jai "Mark" Lee's virtual deposition, setting it for Tuesday, November 26, 2024, *via* Zoom at 8 AM EST/10 PM KST, as Mr. Lee is currently located in South Korea. SM Line counsel informed SEA on Tuesday, November 19, 2024, that Mr. Lee has engaged Montgomery McCracken attorneys as his counsel for the upcoming deposition. SEA is not taking any enforcement steps at this time

regarding the SeaLead subpoena. Once the deposition of Mr. Lee is conducted, SEA will advise as to whether the SeaLead subpoena can be withdrawn.

Further, the Parties respectfully request that the supplemental briefing schedule consideration be extended to December 3, 2024, to allow time for the Parties to confer after Mr. Lee's deposition takes place. On November 13, 2024, SEA filed a Motion to Amend the Lee Subpoena to request the same. SM Line has not filed an opposition.

Finally, SM Line states that in light of the agreement reached between SEA and Mr. Lee, Mr. Lee will voluntarily appear to render his testimony at the time and date listed above and SEA will consider satisfied the subpoena issued for Mr. Lee's testimony. SEA states that Mr. Lee is appearing voluntary for the scheduled deposition, but SEA does not otherwise make any representations that it agrees with SM Line's aforementioned statements contained in this paragraph. SEA will be in a position to evaluate the matter after the conclusion of the scheduled deposition.

Dated: November 21, 2024

Respectfully Submitted,

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